

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cloey Romans	Team: Squad #15	CCRB Case #: 202103696	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 05/12/2021 1:15 AM	Location of Incident: Exit 9 on the Major Deegan Expressway	18 Mo. SOL 11/12/2022	Precinct: 52		
Date/Time CV Reported Sun, 06/20/2021 2:10 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 06/20/2021 2:10 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Russell Crawford	14997	960400	044 PCT
2. POM Thomas Gerlich	08140	963536	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Russell Crawford	Abuse: Police Officer Russell Crawford searched the vehicle in which § 87(2)(b) was an occupant.	A . Substantiated
B . POM Thomas Gerlich	Abuse: Police Officer Thomas Gerlich searched the vehicle in which § 87(2)(b) was an occupant.	B . Substantiated
C . POM Thomas Gerlich	Abuse: Police Officer Thomas Gerlich searched § 87(2)(b)	C . Substantiated
D . POM Thomas Gerlich	Abuse: Police Officer Thomas Gerlich interfered with § 87(2)(b) use of a recording device.	D . Substantiated
E . POM Thomas Gerlich	Abuse: Police Officer Thomas Gerlich searched § 87(2)(b) recording device.	E . Unfounded
F . PO Russell Crawford	Discourtesy: Police Officer Russell Crawford spoke discourteously to § 87(2)(b)	F . Unfounded
G . PO Russell Crawford	Abuse: Police Officer Russell Crawford seized § 87(2)(b) property.	G . Substantiated
H . POM Thomas Gerlich	Abuse: Police Officer Thomas Gerlich seized § 87(2)(b) property.	H . Substantiated
I . PO Russell Crawford	Discourtesy: Police Officer Russell Crawford acted discourteously toward § 87(2)(b)	I . Unsubstantiated
J . POM Thomas Gerlich	Discourtesy: Police Officer Thomas Gerlich acted discourteously toward § 87(2)(b)	J . Unsubstantiated
K . POM Thomas Gerlich	Discourtesy: Police Officer Thomas Gerlich spoke discourteously to § 87(2)(b)	K . Unsubstantiated
L . PO Russell Crawford	Discourtesy: Police Officer Russell Crawford spoke discourteously to § 87(2)(b)	L . Unsubstantiated

Case Summary

On June 20, 2021, § 87(2)(b) submitted this complaint to the CCRB via their website.

At approximately 1:15 a.m. on May 12, 2021, Police Officers Russell Crawford and Thomas Gerlich of the 44th Precinct stopped § 87(2)(b) vehicle near Exit 9 of the Major Deegan Expressway, the Bronx, after observing him speeding. Upon approaching § 87(2)(b) vehicle and requesting his identification, PO Crawford reached into § 87(2)(b) vehicle and pressed the trunk release button under the dash (**Allegation A: Abuse of Authority – Substantiated**). PO Gerlich walked to the rear of the vehicle, removed § 87(2)(b) backpack from the trunk, and searched the contents of the bag (**Allegations B and C: Abuse of Authority – Substantiated**). PO Gerlich reapproached § 87(2)(b) passenger side door, where § 87(2)(b) was holding his cellphone and recording the interaction. PO Gerlich removed the cellphone from § 87(2)(b) hand, then stopped and allegedly searched the recording device (**Allegation D: Abuse – Substantiated**) (**Allegation E: Abuse – Unfounded**). After obtaining § 87(2)(b) information verbally, the officers took his car keys, returned to their police vehicle, and issued § 87(2)(b) three summonses for VTL infractions. PO Gerlich and PO Crawford reapproached § 87(2)(b) vehicle and handed him the summonses, then allegedly told him to “Get the fuck out of here” (**Allegations F: Discourtesy – Unfounded**). The officers proceeded to leave the incident location with § 87(2)(b) car keys (**Allegations G and H: Abuse – Substantiated**). § 87(2)(b) pursued, on foot, the officer’s vehicle for approximately one minute down Exit 9, yelling from ten feet behind it, “You have my keys.” The officers stopped the police vehicle, threw § 87(2)(b) keys out of the driver’s side window, and said, “Get the fuck out of here” (**Allegations I, J, K, and L: Discourtesy – Unsubstantiated**). § 87(2)(b) reentered his vehicle and left the incident location.

§ 87(2)(b) received three summonses for Failure to Present Document, Failure to Comply with a Lawful Order, and Speeding (Board Review 01). No arrests were made.

BWC video was yielded and is linked in the case file as IA #40 (Board Review 02 and 03). Cell phone video was captured by § 87(2)(b) (Board Review 04). No other surveillance or video evidence was obtained during the investigation.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Russell Crawford searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Police Officer Thomas Gerlich searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (C) Abuse of Authority: Police Officer Thomas Gerlich searched § 87(2)(b).

§ 87(2)(b) provided a statement on June 28, 2021. No other civilians or witnesses were identified. PO Gerlich provided a statement on September 1, 2021. PO Crawford provided a statement on September 10, 2021.

It is undisputed that PO Crawford and PO Gerlich stopped § 87(2)(b) vehicle near Exit 9 of the Major Deegan Expressway for speeding, approached his vehicle, and requested his identification, which § 87(2)(b) stated was in his backpack in the trunk of his vehicle. PO Crawford reached through § 87(2)(b) open driver’s side door and pressed the trunk release button which was under the dash. PO Gerlich approached the rear of § 87(2)(b) vehicle,

removed his backpack from the trunk, and search the contents. PO Gerlich returned to the passenger side of § 87(2)(b) vehicle, with the backpack, and PO Gerlich put the backpack through the window of the vehicle, then took § 87(2)(b) cellphone and car keys in the process.

§ 87(2)(b) was traveling north on the Major Deegan Expressway when he saw police lights in his rear-view mirror. § 87(2)(b) drove for approximately one minute after first seeing the lights until he found a shoulder to pull over at the entrance of Exit 9. § 87(2)(b) saw a police SUV park behind him. § 87(2)(b) began recording on his cell phone. PO Crawford approached § 87(2)(b) driver's side and PO Gerlich approached § 87(2)(b) passenger side. PO Crawford asked § 87(2)(b) for his driver's license and § 87(2)(b) stated that he was going to get his identification, which was in the trunk, and opened his driver's side door to do so. Both officers told § 87(2)(b) to stay inside his vehicle. § 87(2)(b) told the officers that his identification was in his bookbag in the trunk of the vehicle and PO Crawford told § 87(2)(b) to open the trunk and he would get the bookbag himself. § 87(2)(b) declined to open the trunk and told PO Crawford that he did not want the officer grabbing anything from it. § 87(2)(b) turned to look towards PO Gerlich at his passenger's side and felt what he believed was PO Crawford's hand brush across his left arm as he reached across § 87(2)(b) to press the trunk-release button located inside the vehicle, to the bottom left of the steering vehicle. § 87(2)(b) believed that PO Crawford also took his car keys out of the cupholder during this time but could not recall the specifics of this series of events and only noticed several minutes later when his keys were not in the vehicle. § 87(2)(b) told PO Crawford not to touch him or the vehicle. PO Crawford and PO Gerlich then both walked to the rear of § 87(2)(b) vehicle and believed they removed his bookbag but could not see their specific actions because the open trunk blocked the officer's actions in the rear window (Board Review 05).

Cell phone video recorded by § 87(2)(b) captured the sounds of PO Crawford pressing the trunk release button inside § 87(2)(b) vehicle and telling him that he had pressed the said button, though it does not visually show PO Crawford taking these actions. The video begins with PO Gerlich asking for § 87(2)(b) driver's license, to which § 87(2)(b) responds that he will get his identification and then opens his driver's side door. PO Gerlich and PO Crawford tell § 87(2)(b) to stay in the vehicle, then PO Gerlich asks § 87(2)(b) where his identification is. § 87(2)(b) tells PO Gerlich that his identification is in his bookbag in the trunk of the car and PO Gerlich tells § 87(2)(b) to open the trunk he will get it himself. § 87(2)(b) tells PO Gerlich no, that he will comply, but would like to get the identification himself. PO Crawford is off camera but is heard telling § 87(2)(b) to pop the trunk, § 87(2)(b) does not respond, and PO Crawford says, "It's right there" and approximately one second later a "pop" sound is heard (00:53 mark). The camera is focused on PO Gerlich and PO Crawford is not seen during this portion. PO Crawford says, "Don't touch me" and § 87(2)(b) responds, "Don't touch me." PO Crawford responds, "I didn't touch you, that was the trunk release button" (1:01 mark). The video immediately disengages (Board Review 04).

PO Crawford and PO Gerlich provided consistent testimony that they first observed § 87(2)(b) vehicle traveling northbound on Cedric Avenue when it passed their police vehicle, which was stationary at Cedric Avenue and Jerome Avenue. PO Crawford used a handheld radar gun to measure § 87(2)(b) speed at 51 mph, which constituted speeding though the officers denied recalling how much over the limit § 87(2)(b) was traveling. The officers followed § 87(2)(b) vehicle onto the Major Deegan Expressway northbound and activated their turret lights and sirens once on the expressway and followed directly behind him. After approximately one minute, § 87(2)(b) stopped his vehicle on the shoulder of Exit 9. Beyond the speeding, neither officer suspected § 87(2)(b) of any criminal activity, did not have any specific safety

concerns, and at no time suspected that § 87(2)(b) was attempting to evade the officers. PO Crawford stated that § 87(2)(b) driving on the Major Deegan Expressway, before stopping, was “not out of the ordinary” and he did not believe § 87(2)(b) was speeding at that time. After § 87(2)(b) stopped his vehicle, the officers pulled their vehicle behind his, and PO Crawford approached the driver’s side while PO Gerlich approached the passenger side. PO Gerlich immediately asked § 87(2)(b) for his identification, registration, and proof of insurance after approaching the vehicle’s passenger side unrolled window. § 87(2)(b) told PO Gerlich that his identification was in his backpack, in the trunk, and attempted to open his driver’s side door. Once § 87(2)(b) opened his door approximately one foot, PO Crawford placed his hand on the door to prevent it from opening any further and told § 87(2)(b) to stay in the vehicle. PO Crawford placed his body between the open door and § 87(2)(b). PO Crawford stood between the open vehicle door and the vehicle and could not recall why the determination to leave the door open was made. During this time, PO Gerlich was speaking to § 87(2)(b) from the passenger side and attempting to obtain § 87(2)(b) documents from him. PO Crawford reached inside the vehicle and pushed the trunk release button, which was on the dash and the furthest left button from the steering wheel. PO Crawford took this action because § 87(2)(b) said that the vehicle was a rental car, and he did not know how to open the trunk. PO Crawford did not recall how § 87(2)(b) phrased this information and did not recall if § 87(2)(b) told PO Crawford to open the trunk. PO Crawford did not ask § 87(2)(b) if he could open the trunk. PO Crawford stated to take this action, he reached his hand approximately one inch into the vehicle to press the button. PO Gerlich went to the trunk of § 87(2)(b) vehicle and removed his backpack, returned to the passenger side of § 87(2)(b) vehicle, and searched the bag for § 87(2)(b) identification, checking every compartment. PO Gerlich searched the bag himself because he did not know what the contents could be, so he did so out of safety (Board Review 06 and 07).

Body-worn Camera (BWC) shows PO Crawford reaching into § 87(2)(b) vehicle, pressing the trunk release button under his dash, and PO Gerlich removing § 87(2)(b) backpack from the trunk, then searching the contents. BWC videos begin as both officers approach § 87(2)(b) vehicle, with PO Crawford standing on the driver’s side and PO Gerlich standing on the passenger side of his vehicle. § 87(2)(b) opens his driver’s side door and both officers tell him to stay inside the vehicle. PO Crawford’s BWC illustrates him opening the driver’s door further, reaching inside § 87(2)(b) vehicle, pressing the trunk release button under his steering wheel, and saying, “That’s the trunk release button” (embedded 05:17:48) (Board Review 03). At no point does § 87(2)(b) state that he does not know how to open the trunk because it is a rental vehicle. PO Gerlich’s BWC then shows him walking to the rear of § 87(2)(b) vehicle, opening the trunk, and removing the backpack (embedded 05:14:56) (Board Review 02). PO Gerlich takes the backpack to the passenger side of the vehicle. PO Gerlich’s hands and the backpack are not visible, but there is an audible sound of zippers opening and closing.

People v. Langen, 60 N.Y.2d 170, 172 describes the reduced expectation of privacy associated with automobiles and the inherent mobility of such vehicles combine to justify the warrantless search of an automobile upon probable cause to believe it carries contraband. However, under the New York State Constitution, the automobile exception is subject to the limitations inherent in the factors, which are its predicate. Police officers, who legitimately stop an automobile and who have probable cause to believe that contraband is concealed somewhere within it, may conduct a probing search of compartments and containers within the vehicle whose contents are not in plain view (Board Review 08).

People v. Carvey, 89 N.Y.2d 707, 708 establishes that there may be exigent circumstances where, following a lawful stop, facts revealed during a proper inquiry or other information gathered during

the course of the encounter lead to the conclusion that a weapon located within the vehicle presents an actual and specific danger to the officer's safety sufficient to justify a further intrusion, notwithstanding the suspect's inability to gain immediate access to that weapon. Notwithstanding acknowledgment that a further intrusion might be justified even in the absence of probable cause, it is clear that the likelihood of a weapon in the car must be substantial and the danger to the officer's safety actual and specific. A reasonable suspicion alone will not suffice (Board Review 09).

It is undisputed that PO Crawford entered § 87(2)(b) vehicle and pressed the trunk release button, and that PO Gerlich then removed § 87(2)(b) backpack from the trunk and searched its contents. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is recommended that **Allegations A, B, and C be Substantiated.**

Allegation (D) Abuse of Authority: Police Officer Thomas Gerlich interfered with § 87(2)(b) use of a recording device.

Allegation (E) Abuse of Authority: Police Officer Thomas Gerlich searched § 87(2)(b) recording device.

After reapproaching § 87(2)(b) passenger side with the backpack, PO Gerlich began to place the backpack onto the passenger seat through the open window when § 87(2)(b) with his cellphone on and recording in his right hand, reached to prevent PO Gerlich from further reaching into the vehicle. During this action, PO Gerlich dropped the backpack onto the seat and removed § 87(2)(b) cellphone from his hands, ended the video recording, then dropped it on the passenger seat with § 87(2)(b) backpack. § 87(2)(b) believed that while PO Gerlich had his cellphone and after he had stopped the recording, he searched the contents of the cellphone. § 87(2)(b) believed this because he did not know how PO Gerlich ultimately obtained his address, which he never verbally provided, and upon reviewing the video he recorded saw that it was abruptly stopped (Board Review 05).

A cellphone video captured by § 87(2)(b) is six seconds in total and does not confirm PO Gerlich as the individual holding the phone and stopping the recording. It illustrates the cellphone in the hand of a white male, who is holding the phone away from himself and which does not capture any distinguishable features. § 87(2)(b) is heard yelling, "You took my phone." The video then ends (Board Review 04).

As PO Gerlich placed § 87(2)(b) backpack onto the passenger seat of § 87(2)(b) vehicle, he took § 87(2)(b) cellphone out of his hand in the process. PO Gerlich did not recall why he took § 87(2)(b) cellphone. PO Gerlich then placed the backpack and cellphone on the ground next to the vehicle and began searching the backpack. After failing to find any identification for § 87(2)(b) PO Gerlich placed § 87(2)(b) cellphone into the backpack and then put the backpack onto the passenger seat of § 87(2)(b) vehicle. PO Gerlich did not recall whether he stopped the recording on § 87(2)(b) cellphone and denied searching the contents of his cellphone (Board Review 06).

Body-worn Camera (BWC) of PO Gerlich shows him taking § 87(2)(b) cellphone and stopping the video recording. PO Gerlich removes the cellphone from § 87(2)(b) hand, holds it in his left hand, begins searching § 87(2)(b) backpack, and turns the cellphone over

and presses the 'off' recording button once he is aware it is recording. PO Gerlich presses the 'off' button three individual times before the camera is deactivated (embedded 05:15:34) (Board Review 02).

NYPD Patrol Guide 203-29 prohibits an officer from intentionally blocking or obstructing cameras or other recording devices when there is no legitimate law enforcement reason to do so; and prohibits deleting any pictures or recordings from observer's recording device or order observer to delete such pictures or recordings (Board Review 10).

It is undisputed that PO Gerlich stopped § 87(2)(b) cellphone recording without express police purpose to do so. § 87(2)(g)

Therefore, it is recommended that **Allegation D** be **Substantiated**

BWC video shows that after PO Gerlich stopped the recording, he returned the cellphone to § 87(2)(b) without performing a search of the device. Therefore, it is recommended that **Allegation E** be closed as **Unfounded**.

Allegation (F) Discourtesy: Police Officer Russell Crawford spoke discourteously to § 87(2)(b)

After returning his cellphone and backpack to him, the officers requested § 87(2)(b) name and date of birth, which he provided verbally. Both officers reentered their police vehicle. Approximately ten minutes later, PO Crawford reproached § 87(2)(b) passenger side window and threw three summonses onto the passenger seat through the open window. § 87(2)(b) alleged that PO Crawford said, "Get the fuck out of here" and walked back to his vehicle (Board Review 05).

PO Crawford denied using any discourtesies or saying, "Get the fuck out of here." PO Gerlich denied hearing PO Crawford use any discourtesies or say, "Get the fuck out of here" (Board Review 06 and 07).

Body-worn Camera (BWC) shows PO Crawford issuing § 87(2)(b) his summonses in the totality of the interaction and PO Crawford is not captured using any discourteous language. The video shows PO Crawford approaching the passenger side of § 87(2)(b) vehicle, with summonses in hand, and handing them to § 87(2)(b) through the open window. PO Crawford says, § 87(2)(b) here are your summonses. Slow down and drive safe. Have a good night." § 87(2)(b) asks why he has received the summonses, PO Crawford explains the VTL infractions, then walks away from § 87(2)(b) vehicle. The BWC recording stops as PO Crawford has reached the driver's side of the police vehicle and begins to enter it (embedded 05:30:52) (Board Review 02 and 03).

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as **Unfounded**.

Allegation (G) Abuse of Authority: Police Officer Russell Crawford seized § 87(2)(b) property.

Allegation (H) Abuse of Authority: Police Officer Thomas Gerlich seized § 87(2)(b) property.

Allegation (I) Discourtesy: Police Officer Russell Crawford acted discourteously toward

§ 87(2)(b)

Allegation (J) Discourtesy: Police Officer Thomas Gerlich acted discourteously toward

§ 87(2)(b)

Allegation (K) Discourtesy: Police Officer Thomas Gerlich spoke discourteously to

§ 87(2)(b)

Allegation (L) Discourtesy: Police Officer Russell Crawford spoke discourteously to

§ 87(2)(b)

After PO Crawford gave § 87(2)(b) his summonses, he and PO Gerlich reentered their police vehicle. § 87(2)(b) keys were still in the officers' possession and had not been returned to him with the summonses. The police vehicle pulled away from behind § 87(2)(b) vehicle to continue traveling on Exit 9. § 87(2)(b) exited his vehicle and chased, on foot, behind the police vehicle for approximately one minute and the remaining length of the exit, yelling, "You have my keys!" The police vehicle stopped at the red traffic light for Fordham Road, which is at the end of Exit 9. Once the police vehicle stopped, the driver threw § 87(2)(b) keys out of the window and said again, "Get the fuck out of here." § 87(2)(b) did not recall which officer had entered the driver's side of the vehicle and could not see the driver to identify if it was PO Crawford or PO Gerlich (Board Review 05).

PO Crawford confirmed that § 87(2)(b) car keys were taken during the stop and provided to PO Gerlich, but he denied recalling how PO Gerlich came into possession of the keys. PO Crawford corroborated that PO Gerlich took § 87(2)(b) keys with him back to the police vehicle. Once within, PO Crawford wrote several summonses for § 87(2)(b). The officers returned to § 87(2)(b) vehicle and PO Crawford handed him summonses, while PO Gerlich had no interaction with him. PO Crawford was never in possession of § 87(2)(b) keys and believed that PO Gerlich must have returned them to § 87(2)(b) though he did not see this happen and was unable to explain when PO Gerlich would have been able to (Board Review 05). PO Gerlich did not recall obtaining § 87(2)(b) keys during the stop but concedes that he may have done. Both officers provided consistent testimony that they left the incident scene before § 87(2)(b) and continued travel on Exit 9. Both officers denied seeing § 87(2)(b) exit his vehicle and chase their police vehicle. The officers denied throwing § 87(2)(b) keys out of the window of the police vehicle. Both officers denied using any discourtesy during their interaction with § 87(2)(b) and denied saying, "Get out of here." PO Crawford denied saying "fuck" at any point and PO Gerlich denied recalling saying "fuck" at any point (Board Review 07).

Body-worn Camera (BWC) from both officers shows § 87(2)(b) keys being seized at the beginning of the car stop, removed to the police vehicle, and not returned to § 87(2)(b) before the officers leave the scene. PO Crawford requests § 87(2)(b) car keys, § 87(2)(b) has a conversation with PO Crawford regarding the keys, during which time PO Gerlich reaches into the vehicle and removes the car keys from § 87(2)(b) cupholder (embedded 05:18:20). PO Gerlich tells PO Crawford he has the keys (embedded 05:18:56) and the officers return to their police vehicle. After completing the summonses in their police vehicle, the officers exit and approach § 87(2)(b) vehicle. PO Crawford hands § 87(2)(b) the summonses, PO Gerlich has no conversation or interaction with § 87(2)(b). During his BWC which captures his interaction with § 87(2)(b) upon returning the summonses, both PO Crawford's hands are visible, without car keys in either hand (embedded 05:30:51). PO Crawford hands § 87(2)(b) the summonses and no car keys, then both officers return to their vehicle (embedded 05:31:02). The video disengages when the officers reenter their police vehicle (Board Review 02 and 03).

Pa. v. Mimms, 434 U.S. 106 has specifically recognized the inordinate risk that faces an officer as he approaches a person seated in an automobile and United States v. Knights, 534 U.S. 112, 114 writes that the touchstone of the Fourth Amendment is reasonableness, and the reasonableness is determined by assessing, on the one hand, the degree to which it intrudes upon an individual's privacy and, on the other, the degree to which it is needed for the promotion of legitimate governmental interests (Board Review 11 and 12).

It is irrefutable that the officers took § 87(2)(b) car keys before returning to their police vehicle to issue § 87(2)(b) three summonses. § 87(2)(g)

Therefore, it is recommended that **Allegations G and H be Substantiated.**

§ 87(2)(g)

Therefore, it is recommended that **Allegations I, J, K, and L be Unsubstantiated.**

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Crawford has been a member of service for six years and has been a subject in seven CCRB complaints and 23 allegations, none of which were substantiated. § 87(2)(g)
- PO Gerlich has been a member of service for four years and has been a subject in ten CCRB complaints and 28 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Investigator:	<u>Cloey Romans</u>	<u>Inv. Cloey Romans</u>	<u>6/29/2022</u>
	Signature	Print Title & Name	Date

Squad Leader: Simon Wang IM Simon Wang 06/29/22
Signature Print Title & Name Date

Reviewer: _____

Signature	Print Title & Name	Date
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